

		convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues” (<i>Id.</i>, § 1048, subd. (b).) “It is within the discretion of the court to bifurcate issues or order separate trials of actions ... and to determine the order in which those issues are to be decided.” (<i>Royal Surplus Lines Ins. Co. v. Ranger Ins. Co.</i> (2002) 100 Cal.App.4th 193, 205.) Defendants contend bifurcation is warranted because separating of liability and damages will promote judicial economy. Whether a dangerous condition existed, whether there was notice of the dangerous condition, and comparative fault are discrete issues to be determined in connection with liability. If there is no liability, then damages will not have to be addressed. The jury will not be bogged down with damages issues when determining if there is liability. Defendants assert that the evidence concerning damages is extensive. (Whirl Decl. ¶¶ 6-7, Exhs. A-B.) Additionally, Defendants contend the sympathy generated by Plaintiff’s injuries may distract and prejudice the jury. Defendants argue that bifurcating liability will ensure Defendants are not prejudicially impacted by testimony that has no bearing on whether there is any liability. Determining liability prior to starting the damages phase may save a substantial amount of time and expense if the jury finds that there was no dangerous condition or that Defendants did not have notice of the dangerous condition. Plaintiff did not file an opposition. The motion is granted. Defendants to give notice.
9	Martinez vs. AN SCPB, LLC	TENTATIVE RULING: For the reasons set forth below, the motion by Defendant An SCPB, LLC for sanctions in the form of an adverse inference jury instruction against Plaintiff Haley Martinez is DENIED without prejudice. <u>Statement of Law</u> The court may impose sanctions on any party engaging in the misuse of the discovery process. (<i>See</i> Code Civ. Proc., § 2023.030.) Disobeying a court order to provide discovery is a misuse of the